

Hearing Transcription & Analysis

BA 2026-001 / ZA 2026-004

Albuquerque Islamic Center Conditional Use Permit

Bernalillo County Planning Commission
sitting as Board of Adjustment

Document prepared: July 5, 2026

Transcription source: Partial audio captured by Victoria Chavez

NOT AN OFFICIAL TRANSCRIPT — Prepared for advocacy and citation purposes

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Section 1: Case Overview

Case Numbers: BA 2026-001 / ZA 2026-004

Location: 9600 2nd Street NW, Zone A1, Tract 208B, MRGCD Map 23, ~3.9 acres

Applicant: Albuquerque Islamic Center (represented by Joseph Tahat, licensed engineer)

Appellant: Pat Hauser (joined by neighbors)

Hearing Body: Bernalillo County Planning Commission acting as Board of Adjustment

Outcome: Appeal DENIED. Modified conditional use approval granted. Vote passed with one "nay."

NOTE: This transcription covers partial hearing audio. The full 3.5-hour public comment period was not captured. A request for the complete official recording is pending.

Section 2: Conditional Use Criteria

Section 24, Bernalillo County Zoning Code

As stated on the record by both Zoning Administrator Maggie Gould and Appellant Pat Hauser, the three required findings for conditional use approval are:

1. The site is adequate in size and shape to accommodate the use.
2. The site can be developed so that undue traffic congestion or hazards will not be created.
3. The proposed use will have no adverse effect on the neighborhood and will not seriously conflict with the character of the area.

Section 3: Transcriptions with Speaker Identification

For each recording segment below, transcriptions are labeled by speaker and cleaned to remove false starts, repeated words, and filler where meaning is clear. Brackets denote [inaudible], [crosstalk], or contextual notes.

Recording 1 — Zoning Administrator Staff Presentation

SPEAKER: Maggie Gould, Zoning Administrator / Hearing Officer

TRANSCRIPT:

Thank you, Madam Chair and Commissioners. I'm Maggie Gould, I'm the county's zoning administrator and also the hearing officer for our administrative zoning hearings. As you said, this is BA 2026-001, also ZA 2026-004. Pat Hauser appeals the zoning administrator's decision to approve a conditional use to allow a church and incidental facilities for a mosque and parking area of landscaping and fencing on Tract 208B, MRGCD Map 23, located at 9600 2nd Street Northwest, Zone A1, and containing approximately 3.9 acres.

The CPA is acting in its role as the Board of Adjustment for this matter. And the Board of Adjustment has duties and powers which include to hear and determine appeals where it is alleged that there is error or abuse of discretion, or a requirement in any determination made by the zoning administrator. And to hear and determine appeals from the rulings, decisions, and determinations of the zoning administrator granting or denying applications for variation from requirements of this ordinance or granting or denying applications for conditional use permits authorized by this ordinance. Upon hearing of such appeals, the Board of Adjustment may affirm, change, or modify the ruling or the decision or determination appealed from, or in lieu thereof make such other additional determination as it deems proper in these premises.

And so what this means is, as always, your role as the commission — you may deny the appeal and uphold the decision of the zoning administrator. You may grant the appeal and overturn the administrative decision, or you may modify the decision broadly. And that's — as with any other appeal — that's your place here.

The other thing is that we have received — as you've gotten — we've received many, many comments on this case kind of across the spectrum. We have two comment deadlines. You've gotten the materials that we had at those two deadlines. We did receive additional comments after the deadline that the commission may choose to accept. We do have copies for you that can be entered into the record. And again, that is the pleasure of the commission.

[CHAIR]: Yes. Please admit them to the record.

[GOULD]: Okay. Here, we have copies for you now.

This area is developed with a mix of residential, commercial, and industrial uses. There are multiple special use permits, including a plant nursery, trailer court, sales of yard and garden equipment, and contractor's yard. There's A1, our rural agricultural zone. M1, light manufacturing to the north. Also our C1, neighborhood commercial, and A1 to the south. R1 and A1, again, residential districts to the east and west. And the site contains a home that would be demolished for this project.

This request is for conditional use. Conditional uses are uses that are expected to occur in the underlying zone and require review for compatibility. And the conditional use is not a zone change. The property retains its underlying zoning. And so the conditional use criteria is that the proposed site is adequate for the use, that the proposed use can be developed so that undue traffic congestion or hazards will not be created, and the proposed use will not have an adverse effect on the neighborhood or seriously conflict with character of the area.

And so this request was initially heard by the ZA at our March 20 hearing. The applicant stated that the site would be large enough, that there would be sufficient parking and landscaping and open space. He stated that this could be a positive addition to the area and could provide a transition between the commercial uses along Alameda and the residential uses going north.

And so then this proposed commercial area is classrooms, kitchens, storage, library, and gym in a two-story, approximately 50,000-square-foot building. This case was continued to our April 8 hearing to allow time for further discussions about traffic and about the layout itself, including landscaping.

So again, at the April hearing, there was more information about the site plan. We had better landscaping buffers. We had additional discussions with our traffic engineering. We did have speakers at the April 8 meeting come to talk about their concerns, including traffic, the size of the building, and the possible impact on the area, especially including that the intersection of 2nd and Alameda does get congested.

However, the ZA found that this request met conditional use criteria because the site was large enough to accommodate parking, it met the required setbacks, it could be developed without a variance. And so this was appealed timely. The appellant, Mr. Hauser, was present at the hearing and did express his concerns.

And so as this process has gone on, we've gotten updated materials from both the appellant and the applicant. And we got some clarifying materials from the applicant — because on our end, we were really trying to pin down something. Part of what happens with the conditional use approval is more about the use and less about the layout. And at building permit, things like traffic studies, drainage, all of those things occur as kind of a second part.

And so — because of the concerns about traffic, because of all of these community concerns, we wanted a little more information. And so we got some additional materials from the applicant. And in looking at those materials, we started to look at the proposed classrooms and school use, and felt like the magnitude of that rose beyond what would be an incidental use and would be kind of a conditional use

on its own. And so our concern about that was there is a process for looking at those uses that hadn't occurred.

And so the school use would need to be remanded back to the ZA for consideration as its own particular conditional use permit. And so in discussions with the applicant, the applicant felt that it would be easier to simply just remove the discussion of any kind of school and classroom. And so we did receive from the applicant some supplemental materials that I would like to show. And then at the pleasure of the commission to enter into the record. And then when it is during the applicant's time, the applicant can further discuss this.

Recording 2 — Applicant's Representative Rebuttal (Brief)

SPEAKER: Joseph Tahat, Licensed Civil Engineer (PhD), Applicant's Representative

CONTEXT: Responding after staff presentation; appearing online

TRANSCRIPT:

This is a basketball court that is open. For seating. This is a worship area that is also open, and so we're looking at reduced square footage.

[After being sworn in and providing address: 12300 Delray Avenue NE, Albuquerque, NM 87122]

This application is for the Islamic Center. The Islamic Center proposed to have their mosque and the incidental facility — the gym, the basketball, and other amenities. And they would like to have a school. Despite the teaching classes that are incidental for any religious facility, there is a complete school from preschool to high school. With the school, any engineer should expect that there is some traffic associated with the school. So after we heard the public and their comments about the existing problem at the intersection on 2nd Street and Alameda, the Albuquerque Islamic Center board decided to remove the school entirely from the project. So the decision now from the board is going to be on the mosque only, and the facility associated with that, without school. There is no school, there is no preschool, there are no classes, there is no elementary school, there is no middle school, there is no high school. This is just for confirmation for everybody.

This application started before 2 years, and it was granted an approval without any appeal, without any opposition, and I appreciate that — from the community, from the Albuquerque Islamic Board, and from the County of Bernalillo. And even the neighbors — many of them were in favor of this project. From the start until now, the project has more than 3,100 verified support signatures collected online, and they collected more than 1,000 verified support signatures within 1 day — 24 hours. Within one week they had more than 3,100 supporters for this project.

I know there are many comments from the public, so I would like to explain something. First — yes, we hear you. We hear that there is a problem. But what you call a problem, we call input as an engineer. The problem is an input for me. I know there is traffic on Alameda. I know there is traffic on Paseo del

Norte. There is traffic on Montañño. These three streets are main streets connecting the west and east side of Albuquerque. The city is expanding, and with the expansion there is traffic, and the responsibility to solve the traffic problem is on all of us. We have to share the responsibility.

One of the solutions is the traffic study. But who is going to do the traffic study? Now, without the school, there is no problem at all with the traffic. But let's say we need to do a traffic study — if this project is disallowed for some reason, who is going to do the traffic study? Who is going to solve the problem? If it is approved, then a traffic study is going to be generated. That's for the school — it's not in here today, we are not voting on that. But a traffic study is going to happen, with or without school, to make sure that there is easy traffic flow and there is no problem. Because the owner of this project wants their Islamic Center, and they want that place to expand.

They have an existing location on Bernalillo [Menaul]. That is also a main street in the city. It's very busy — it's commercial, it has a lot of commercial property. And the owner of that location has a problem with the parking lot there. So this big location — almost 4 acres — is a solution. Everybody is looking for a solution. The one who applied for this project wants a solution. And the one who is opposing this project is also looking for a solution. And the solution will come through this project. This project is the solution.

I can mention some of the solutions this project will provide. The existing area has mixed use — there is commercial, there is a mobile home park, there is light industrial like the landscaping property and gravel and compost. So —

[Screen-sharing technical difficulties; staff offered to display documents from the record]

The buffer zone: the current situation is that there is nothing between the commercial and those single-family houses — just this lot. The owner of this lot, Mr. Chand, inherited this land generation after generation. He was in favor of this project from the beginning. He put his property on the market for a long time — during the low interest rate period from 2022 until 2024 — and he couldn't sell it. Why? Because it is adjacent to a nursery, a gas station, a mechanic shop, and other commercial uses. But who wants to live there?

What will save those neighbors — those single-family houses — from dust? From air pollution? From car emissions? From rodents and insects generated from the compost and the smell from the car shop and the gas stations? This project is a buffer. It is a real buffer. It is a physical barrier — like a sound barrier, a windbreaker, a dust breaker, an insect breaker. Think about a 6-foot wall on each side — one next to the commercial, one next to the residential — and the building about 22 feet in height in the middle. What will happen to the sound? It is going to break and dissipate. What will happen to the insects? They will have a physical barrier.

From the street, the building is invisible. The six-foot wall, and then the distance between the front wall and the building is about 270 feet. I drew the building at 26 feet — which is the highest allowable by the zoning — and I drew a 6-foot wall. Neither a pedestrian nor a driver can see the building from 2nd

Street. What can they see? They can see the wall, they can see the trees above the wall, and they can see open space. So it is not an institutional-looking building. Nobody can see it from 2nd Street unless they want to jump over the wall or go through the gate.

This project will bring back the integrity of the location. Right now it is mixed use, but this will bring back what is missing from that place — the open space, the nature of agriculture. Because you are going to see the trees and the wall only. And it plays as a real physical buffer between the commercial and the residential.

The board decided to remove the school not because I see it as impossible or a problem — just because there is a lot of opposition to it, and we want to go with the people, because those are our neighbors. Those are the residents of Albuquerque, the city that we love. These are the people who are going to share the road with us. We want to tell them: hey, people, we hear you.

After this approval, there is the typical process — we get approval, and then we do the design. There is a solution for the drainage, and we have it. But because of the process here, it goes by site plan only, and then the engineering comes in later. Just like other projects on this agenda — they have engineering issues that will be solved down the road. The public calls it a problem; engineering calls it an input.

What you see as traffic — yes, I see it too. I use that street. But I have an input. Many other engineering matters — foundation design, soil test — all of that has been done. But the typical process is: apply, get the application reviewed, see if it fits, then the approval letter. The previous approval letter mentioned traffic, mentioned sufficient ingress and egress. If an engineer looked at the site, it is very big. It is adequate to accommodate any engineering solution coming down the road.

What you call a problem, I call input. What you are looking to solve, I am looking to solve. You are looking for a solution — I am looking for a solution.

Recording 3 — Appellant's Testimony

SPEAKER: Pat Hauser, Appellant

CONTEXT: Resident and neighbor appealing the ZA's approval; represented himself; joined by other neighbors

TRANSCRIPT:

I have requested a 120-day continuance on this. I did not see that mentioned at the onset, and that was one of my requests, so that there would be additional information available. I did not hear that mentioned in the opening comments. I also have documents for each of you that you can follow along with my presentation.

Good morning, Madam Chair and members of the board. Before I begin, I want to make truly clear that I and those supporting this appeal are not affiliated with, and do not support, any group or individual using this case to promote anti-religious rhetoric. That is not our agenda, and it is not the agenda of the

neighbors who joined this appeal. This case is about traffic safety, infrastructure, zoning law, and planning policy.

It is also problematic that we have seen all of these changes being submitted now by the applicant when we were not aware of them to start with.

I am the appellant in this case. I am also speaking in support of any related appeals and the written materials submitted by other neighbors. We are asking you this morning to grant the appeal because the zoning administrator approved this permit prematurely and inaccurately, and the applicant did not carry the burden required by Section 24 of the Bernalillo County Zoning Code.

Before I go further, I want to make one clarification for the board. In this appeal, there is a mistaken criteria by me that was applying Resolution 116 versus Section 24 of Bernalillo County Code. Section 24 puts the burden on the applicant to prove three things before a conditional use can be approved:

4. First, the site is adequate in size and shape to accommodate the use.
5. Second, that the site can be developed so that undue traffic congestion and hazards will not be created.
6. Third, that the proposed use will have no adverse effect on the neighborhood and will not seriously conflict with the character of the area.

The application materials require an adequate site plan showing all buildings, structures, dimensions, and site conditions, drawn to scale and with enough clarity to convey the scope of the proposal. This is supposed to be proven at the zoning stage — not guessed at now and fixed later.

That is exactly where case law matters. Duke City Lumber tells you that the applicant carries the burden of proof and that the approval must rest on substantial evidence in the record — not assumptions, not general statements, and not staff confidence that things can be worked out later. Butterfield [Batter Shell] tells you that the testimony of residents about real traffic and neighborhood conditions is evidence and must be weighed, especially where the technical record is thin. High-Risk Shackle tells you that you have to look at the whole record, and that staff practices cannot substitute for what the ordinance actually requires. And Dolan matters because it means the county cannot simply approve now and later assume it can force one private applicant to pay for major off-site or regional fixes unless conditions meet the law's rough proportionality standard.

When you apply these principles to the three required findings, the approval falls apart.

Finding 1 — Site Adequacy

The zoning administrator states in the staff report that the site is adequate in size and shape because the property is 3.9 acres, that it provides sufficient area to accommodate the site features required by ordinance, and that no variance will be required. But when you look at the actual proof behind the conclusion, the record is missing what Section 24 requires.

That same staff report describes the project as having a first-floor footprint of approximately 43,000 square feet and approximately 15,000 square feet on the second floor. Yet the applicant's own written statement does not give those numbers. The applicant says only that the building will be approximately 50,000 square feet and that it will be a two-story structure. The precise 43,000 and 15,000 numbers appear in the staff report, but there is no separate engineering analysis in the record showing how these numbers were derived, and no integrated site capacity study proving that this footprint, together with parking, circulation, buffers, landscaping, and drainage, all fit on 3.9 acres.

That matters because Duke City Lumber says that the burden is on the applicant. The applicant cannot simply say the site is large enough and then have staff fill in the rest by assumption. The applicant's own written statement on adequacy says "3.87 acres is ample space" and compares it to three football fields. That is not substantial evidence. That is not demonstrating that all required ordinance elements fit on the parcel.

The county's own conditions show that the layout was not actually resolved. One condition requires the applicant to coordinate with Public Works to reduce asphalt and improve drainage. That means the county approved first and left key design questions for later. Under High-Risk Shackle, that is not enough — the ordinance requires a real adequacy finding now, not a promise that Public Works can make the plan work later.

Our supplemental evidence shows why this matters. Once you add the building footprint, required parking and drive aisles, corridor buffers, and drainage, the site appears either fully consumed or in deficit. Even if the board does not accept every square foot of our calculations, the legal point remains: the applicant did not prove adequacy and the zoning administrator approved anyway. Under Duke City Lumber, that is not substantial evidence on criterion one.

Finding 2 — Traffic and Safety

This is the clearest violation of all. Section 24 requires proof that the site can be developed so that undue traffic congestion and hazards will not be created. But there is no project-specific traffic impact study in the zoning record. Public Works told the zoning administrator that a traffic review would be required at building permit, and the staff report says a traffic impact study will be required later and that improvements could be required. That is not proof. That is deferral.

Here, I want to make a factual clarification: the Murphy Express traffic study was not placed into the record by the zoning administration. It was provided by me, as part of our supplemental materials, because the county did not put a project-specific traffic study into the file before approving the permit.

Why does this matter? Because Butterfield says that resident testimony about traffic conditions is evidence that must be taken seriously — and here, that testimony is backed up by the Murphy study. The appellant supplied that. Residents in the record describe multiple light cycles and elevated congestion, long queues, and emergency access concerns — especially if there is an accident on any of the arterials. This is a landlocked area, only accessible from 2nd Street and Alameda. The study shows

failing turning movements, severely degraded lanes, and physical constraints at the Alameda and 2nd Street corridor.

So when the zoning administrator says the site can be developed without undue traffic congestion or hazards because off-street parking and access improvements are expected and Public Works will review traffic later — that is not substantial evidence under *Duke City Lumber*. It is the opposite. It is an admission that the hard traffic analysis was not done at the time of approval.

High-Risk Shackle matters here too — you cannot let an informal staff practice of deferring traffic analysis to the building permit stage replace the actual requirements of Section 24 to make the traffic finding now. If the ordinance says the applicant must prove no undue congestion or hazards before the permit is issued, the county cannot reverse the sequence.

And Dolan matters because the staff report says road improvements could be required later — but the county cannot assume that if a later traffic impact analysis shows major deficiencies, it can simply push the cost of broad off-site regional fixes onto the applicant. The law limits that. So approving now and postponing a real traffic analysis does not reduce legal risk for the county — it increases it.

Finding 3 — Neighborhood Impact and Character

The zoning administrator says the proposed use will have no adverse effect on the neighborhood and will not seriously conflict with the character of the area because surrounding properties include a mix of residential, commercial, and industrial uses, and because 2nd Street is developed with mixed uses. But the finding leaves out one of the most vital facts of the record: the site is within the rural area of the comprehensive plan.

Our submission shows that North Alameda is designated D16. The map designates this corridor as rural. More urbanized and developing urban areas are concentrated south of Alameda and further toward Albuquerque. The zone atlas shows A1, R1, and R2 zones north of Alameda, with more intense uses appearing only in scattered pockets via special use permits — not a continuous commercial zone as exists along Alameda.

That matters because the Albuquerque-Bernalillo County Comprehensive Plan and the North Valley Area Plan are part of the policy framework for understanding what “character of the area” means here. We are not saying those plans override Section 24. We are saying they help define how Section 24 should be applied in this particular corridor.

There is no meaningful proof in the zoning administrator’s approval that this planning framework was actually weighed. High-Risk Shackle means that looking at the whole record requires looking not just at isolated nearby uses, but at the county’s own map-based use patterns. A large two-story, multi-use, high-volume institutional campus — even with the school and daycare removed — in a location like this is different from routine infill in a fully urbanized corridor.

Duke City Lumber matters here again because the applicant did not carry the burden of proof. The applicant's own statement about character is mostly generalized optimism. That is not substantial evidence that a high-volume large campus of this scale has no adverse effect on a rural North Valley corridor or that it does not exceed the capacity of the infrastructure.

On criterion three, the zoning administrator did not meaningfully apply the Albuquerque-Bernalillo County planning framework, did not grapple with the rural designation, and did not support the no-adverse-effect finding with substantial evidence. That too was premature and inaccurate.

Summary

The same legal deficit runs through all three findings:

- On site adequacy: the ZA relied on square footage figures not clearly provided by the applicant and approved without a true site capacity demonstration. Under Duke City Lumber and High-Risk Shackle, that is not substantial evidence.
- On traffic: the ZA approved without a project-specific traffic impact analysis, deferred the challenging work to the building permit, and ignored both resident testimony and the Murphy study I submitted. Under Butterfield, Duke City Lumber, and High-Risk Shackle, that is not lawful proof.
- On character: the ZA treated this as a generic mixed-use area by failing to meaningfully address the rural D16 designation and the Albuquerque-Bernalillo County and North Valley planning framework. Under High-Risk Shackle and Duke City Lumber, that is also not substantial evidence.

And under Dolan, the county should not hold itself in a position where it grants rights now, discovers later that the corridor cannot safely absorb the use, and then assumes it can solve that with conditions that may not be legally possible.

Recording 4 — Applicant's Rebuttal (2 minutes)

SPEAKER: Joseph Tahat, Licensed Civil Engineer (PhD), Applicant's Representative

CONTEXT: Brief rebuttal following appellant's testimony

TRANSCRIPT:

On behalf of the advocate for the Islamic Center, I think everybody here understands what is going on. Maybe the main concern is the traffic. I will respond just to the substantive things.

From my engineering point of view, the traffic will not be generated at the same time as the peak traffic hour for Alameda or 2nd Street. The Albuquerque Islamic Center is operating now — at this moment. This is a Friday. They set their service time to avoid the traffic on Paseo del Norte, and they will do that on 2nd Street as well.

Regarding the concerns about dimensions and adequacy — I am sorry to hear that. The plans are stamped by a licensed architect-engineer. His name is Scott Anderson. And they were reviewed and designed by me. I am also a licensed engineer. I have a PhD in civil engineering. I work for the state of New Mexico and I also work for my own firm. I am a developer, a builder, and a licensed contractor.

I know the commission will filter out things that are not fact-based. My speech is for those who are looking for a solution — like what I started with, I will end with: for the people.

Recording 5 — County Traffic Engineering Staff Testimony

SPEAKERS:

- Julie Luna, Traffic Operations Section Manager, Bernalillo County Public Works
- Travis Johnson, Traffic Engineer, Bernalillo County Public Works
- Nicholas Ham, Planning and Development Services (land use/zoning)
- Commissioner Withers (questions)
- Commissioner Nelson (questions)
- Chair Chavez (questions)

TRANSCRIPT:

[CHAIR]: All right. Chair Chavez, members of the commission. My name is Julie Luna. I review traffic for new development, and with me today I have our traffic engineer, Mr. Travis Johnson. I run the traffic operations section for Bernalillo County — the operations and maintenance side.

[COMMISSIONER]: Can you talk a little first to respond to the question about pushing traffic to 2nd Street?

[LUNA]: Yes. We do have an upcoming project on 4th Street between Ortega north to Alameda Boulevard. 4th Street currently has 2 lanes northbound and 2 lanes southbound. What we are doing is going to 1 lane in each direction and a center turn lane. The center turn lane allows for left turns without vehicles having to queue up behind a car waiting for traffic to clear. It is a significant improvement to safety, and it is also a modest reduction in capacity. Before we started this project, we did do a traffic study to verify that 4th Street could accommodate current levels of traffic with this reconfiguration.

[CHAIR]: The residents in this room are very concerned about the placement of this church and that the traffic will make what they already have worse. They consider the traffic that they already have to be horrible. Is that wrong? And would you explain to everybody what the usual process is for traffic studies? Is it true that traffic in that area is really bad?

[LUNA]: Yes. There is a regional traffic challenge issue, and it has to do with the limited number of river crossings and something called job-to-housing balance. West of the river, for every 2 homes, there is 1 job. East of the river, for every 2 homes, there are 3 jobs. So Alameda Boulevard, as well as other river

crossings, experiences high levels of congestion eastbound in the AM commuter period and high levels of congestion westbound in the PM period. Alameda Boulevard absolutely does have a congestion issue. It is a regional problem. Anyone who commutes from the west side to the east side experiences this.

[LUNA]: Regarding traffic impact assessments: Bernalillo County Public Works requires a traffic study for this development, and we require it upon building permit. I know Mr. Hauser wanted that to come earlier. We would not allow the building permit to be issued without a completed traffic impact assessment. A TIA is a very high level of review. It requires the applicant to hire a licensed traffic engineer with experience completing these studies. It evaluates the current situation, models the additional levels of traffic, and requires the applicant to mitigate any impacts. That mitigation typically is in the form of constructed improvements. It may also be in the form of traffic control or, as the applicant stated, adjusting hours of operation. It is a collaborative process.

[LUNA]: This location is also complex in terms of jurisdictions. Alameda Boulevard to the west is under NMDOT; to the east it is under City of Albuquerque. So the agencies that will review this traffic study are Bernalillo County, NMDOT, and City of Albuquerque. The applicant will be required to mitigate those impacts prior to building permit or along with the building permit. We will not issue a building permit until the traffic study is approved and the applicant has agreed to those mitigations. We would also not allow the building to open until all mitigated construction improvements were completed.

[COMMISSIONER WITHERS]: As part of the application for the conditional use approval, was there any information about the potential for increased visitors per day?

[LUNA]: A good portion of the traffic impact assessment is to nail down how many trips will be generated by the site. This one has been particularly complex — they have hours of worship, and at one point they were interested in a school and a daycare as well. Based on whatever conditional use approval they will have, that is what we will use to determine how many visitors they will have. We do use national data — the Institute of Transportation Engineers Trip Generation Manual — as essentially the gold standard to determine the number of trips to the site.

[COMMISSIONER WITHERS]: I want to ask a clarifying question about how this whole process works. It seems paradoxical to me that we are tasked with determining the appropriateness of the use and whether this project can be developed without causing undue traffic congestion — and then we are hearing from people in the community that there already is undue traffic congestion. And what I hear you saying is that part of that is regional — beyond the scope of what we are dealing with. But I want to come back to: how are we supposed to evaluate the impact on traffic of this development if we do not have any idea of what sort of additional traffic it is going to cause?

[LUNA]: Internally we have Public Works, and we have Planning and Development Services. Public Works is responsible for public right-of-way, and Planning and Development Services handles land use and zoning. Mr. Hauser brought up that he felt strongly that the traffic impact assessment should occur at this stage as opposed to at building permit. I do want to defer to Nicholas Ham. I will just tell you that

Public Works' teeth in the matter is at building permit. So the answer is: no, you have nothing on record. And I try to be very respectful of my colleagues in planning and development services as to where requirements are aligned.

[HAM]: I think it is a great question and also a very hard one to answer. The discretion of the county — the Board of Adjustment as the decision-making body — is to determine if there is undue traffic hazards or congestion created by the application. Understanding, of course, through public testimony and testimony from colleagues at Public Works, that there is background traffic congestion as part of the development pattern that exists now. The Board of Adjustment has discretion to adjust the conditions of approval — meaning there could be limits applied on the approval to further mitigate traffic impacts. As Ms. Luna has stated, the building permit process has an inherent process around traffic quantification and then provision of necessary infrastructure to offset that impact. There is some subjectivity built in here because we do not at this point have the traffic impact analysis. What we can do is apply mitigation conditions if it pleases the Commission to move this forward — conditions proposed by staff or of your own construction that would further mitigate traffic concerns. We would be happy to help craft those today.

[COMMISSIONER]: Ms. Luna, Mr. Hauser has referred to the Murphy study. Does that provide any insights that could be useful here?

[LUNA]: We consider traffic studies valid for three years. It is helpful when there have been multiple studies along a corridor — absolutely. It is helpful to give you insights as to how a traffic study was completed. But this project does need to have its very own traffic study for this location.

[COMMISSIONER NELSON]: At discretion, we can condition approval on a traffic study being required prior to building permit, correct?

[HAM]: Yes. It is within your authority to ask for additional information. I would offer caution around imposing a requirement specifically on a religious institution that would be additional or different from what the county has required of other religious institutions in the land use process. To my knowledge, religious institutions have not been required to provide a traffic impact analysis before the building permit process. However, you can absolutely require as a condition of approval — with the building permit — and you could even go further to say that construction of the facility would require construction of the infrastructure as required by Public Works. That process is already built into any construction permit in the county.

[COMMISSIONER]: If we required a TIA right now, that could place an undue burden on the applicant at this juncture — when they would be required to do it anyway at the building permit stage?

[LUNA]: It could be used for the building permit. They would be required to mitigate the traffic impact due to the trips coming and going to their site. That is not mitigating the regional issue, but it is mitigating the additional traffic that will be generated by their site.

[COMMISSIONER]: On the cannabis shop issue that was raised in public comment — the separation provision protects existing religious or educational institutions. Is the inverse true?

[HAM]: That is absolutely correct. The state separation provision protects existing religious or educational institutions. You are not — it does not work in reverse. If a religious institution or educational institution is next to an existing facility that engages in those activities, state law does not prohibit that. Staff would like to incorporate findings of fact capturing that the facility that retails cannabis and alcohol existed prior to this application.

[COMMISSIONER WITHERS]: Several public comments expressed concern about amplified noise — calls to prayer or other amplified sound on the surrounding community. Are there any conditions on this approval that would prevent amplified sound?

[HAM]: There was a condition — condition number 3 — that prohibited amplified sound, for exactly that reason, given the proximity to residential to the north. That is in addition to the sound ordinance. Regarding concerns about religious freedom, you cannot treat a church separately than you would treat a similar use in a similar situation. If we had someone coming in for a conditional use for some other kind of facility with that proximity to residential, we could also apply conditions about sound or lighting. Those are conditions we could put on any other project.

[GOULD]: We may be able to mitigate some of the concern by posing a question to the applicant about whether they are agreeing to the limitation — if they agree, it removes some concern about potential discrimination.

[COMMISSIONER WITHERS]: I want to say for the record: I am very disgusted by insinuations that we should block this development based on the fact that people do not like the religion being practiced there. That will not factor into my thinking in any way. I would also like to say to those who would dismiss the concerns of the community and insinuate that those of us paying attention to traffic concerns are somehow discriminating — that is also completely unwarranted.

Recording 6 — Commission Deliberation: Square Footage and Adequacy

SPEAKERS: Commissioner Leon Guerrero, Maggie Gould (ZA), Nicholas Ham, Commissioner Trujillo

TRANSCRIPT:

[COMMISSIONER LEON GUERRERO]: Mr. Hauser's appeal is based on three areas — three findings — that there is not enough specificity in the application. Is there enough information for us to be able to make an informed decision, or is there more we should be asking for in terms of the square footage and the rural D16 designation?

[GOULD]: What I had hoped is that the applicant would walk us through the updated site plan. What we usually get at the conditional use level is pretty conceptual — we get parking, a layout, and so we know things like setbacks and the amount of parking. Height in the A1 zone is limited to 26 feet — whether for

a residential building or a large barn. Those things are built in. And as we talked about, the building permit process is when traffic happens, fire review happens, and a full grading and drainage plan happens. The question for you all is: do you want more information on this updated plan? Do you want the applicant to walk you through it?

[HAM]: I do think it would benefit the commission, the public, and planning staff to have the applicant — now that the school and daycare uses are off the programming table — provide clarity on the square footage and floor area of the facility that is intended to be constructed, given the program that will be used on the site.

[COMMISSIONER TRUJILLO]: I also agree that I need a little more time to see what those exact specifications are going to be before I would make a decision.

[GOULD]: My recommendation would be: ask the applicant — give them an opportunity to clarify. If that provides the information you feel is necessary, you can take an action. If not, staff is prepared — if this needed to be continued to the next agenda, we could accommodate that.

[CHAIR]: If the applicant is prepared to walk us through this now, that would be great.

[Technical note: Updated site plan received by staff the previous afternoon was displayed on screen.]

Recording 7 — Applicant's Site Plan Walkthrough (Second Floor)

SPEAKER: Joseph Tahat, Applicant's Representative

TRANSCRIPT:

The setback on the south side — it's more than the minimum.

[Describing second floor plan displayed on screen:]

That big room with a circle in the middle — that is not the basketball court. That is the prayer area — the main area for prayer. This is not additional to the second floor; it is a double ceiling. So we do not count that twice in the area. The other one is the basketball court — that is clear — and it also has a double ceiling because the height required for basketball cannot be 9 feet. The entry — which is the other section — there is a corridor or hallway around that square and in the middle it is open to the floor, so this is also double ceiling with a walkway.

So this is the project. You can see we eliminated all the school and the classes related to the school. There is no daycare, there is no elementary, middle, or high school. All of those are eliminated. This area now could be a balcony, an observation area, open space as a roof — whatever it can be used for.

The other things are just bathrooms, toilets, a control room, IT, three offices, and the stairs. There is nothing much in the second floor — it is very clearly within the setbacks, more than the minimum.

Recording 8 — Commission Questions on Traffic Scope

SPEAKERS: Commissioner Withers, Joseph Tahat, Imam (Community Representative, name not captured on recording)

TRANSCRIPT:

[COMMISSIONER WITHERS]: Mr. Tahat, I want to express my support for what you are trying to do. But our job is to scrutinize these applications — we are tasked with determining whether or not this can be developed in a way that does not cause undue traffic, and we are told we will not get to find out whether it will cause undue traffic until after we approve it. Could you give us an idea of the scope — how many people might be coming and going on any given day? Are we talking 100 cars, 200, 500?

[TAHAT]: In any given day — and this is from my experience with the current location on Menaul, which you can visit at any time without any warning — there are no cars except during services. It is like any other church in town — just during the service. It is not like an office building where people show up at 8 and leave at 4.

[TAHAT]: There are 5 prayer times per day. But honestly, here in Albuquerque — like in many Western cities — nobody goes to the dawn prayer [Fajr Salah]. Nobody goes at noon on most days. Even at the current mosque, one of the speakers said “I passed by there and I see what is going on.” Anyone can go there — their address is on the application. There is no traffic there on any single day except Friday.

[TAHAT]: On Friday, there is the Jumu’ah service at noon, which they do at two separate times. They currently have 1,900 worshippers. The cars at the current location are limited to about 89 parking spaces. So maybe 100 to 180 total attendees between the two services. I would expect a similar pattern at the new location.

[TAHAT]: The maximum capacity at the new location — by code, based on parking — would be 63 spaces [referring to parking calculation basis]. However, providing 235 parking spaces creates a buffer to keep everything inside. Realistically I expect no more than 140 to 150 cars, and with flexibility to split the service into two separate times, that could be 100 to 120 cars at a peak.

[TAHAT]: As they expand toward maximum capacity of 600 worshippers, the code requires one parking space per 4 worshippers — which would be 150 spaces — and they are providing 235. Why do they have that buffer? To keep everything inside. I made modifications to their current location on Menaul, and they control their entry and exit to smooth out traffic without any requirement from the city or the county. It is their own choice. They want their worshippers to go in and out efficiently — Friday is not a day off like Sunday. Most of them are employed. They do not want traffic problems either.

[COMMISSIONER WITHERS]: Just to confirm — you are anticipating about 150 visitors on the busiest day, and the plan for max capacity might be up to 600 visitors at a time, which could mean anywhere from 60 cars at the start up to around 300 cars at maximum, but likely staying under the 200-car ratio, and you have accommodating parking for that?

[TAHAT]: Yes. Correct.

[IMAM/COMMUNITY REP]: Regarding the current masjid — most likely we will not keep the masjid at the current location. There is a plan to sell it. This is the reason we are moving — we wanted more space for our community members. I looked at the area by Alameda and Wyoming and by La Cueva — I go to the west through this area. One of the decisions we made to buy this property was that most of the time, especially during the Friday noon hours, it is empty — always empty. We work very hard to make sure that our prayer times — the nice thing is that they can be moved — are timed so our community members can go in and out easily and so our neighbors are not impacted. That is why we have never had any problems with neighbors. In case we move, we do not plan to keep the old location.

Recording 9 — Staff Findings Read Into Record & Final Vote

SPEAKERS: Maggie Gould (ZA), Nicholas Ham, Commissioners, Chair Chavez

TRANSCRIPT:

[GOULD reading modified findings for denial into record, followed by discussion and corrections:]

Staff presented two sets of findings — one for approval (modified), one for denial — and commissioners requested to review the modified findings for denial.

Key finding language read into record (denial findings, as modified):

- "The site provides ingress and egress for vehicular access, but the development of the site may cause undue traffic congestion or hazards due to the number of vehicles that may access the site."
- "The area has a mix of uses, and the proposed use will add additional traffic to the already burdened intersection of 2nd Street and Alameda Boulevard."
- "The size of the proposed building is larger than some of the surrounding buildings, and may conflict with the area character."
- "The site is within the rural area of the comprehensive plan."
- "The size of the proposed use and traffic intensity may be more intense than what would be expected in the A1 zone." [Commissioner Nelson noted this language was originally drafted when the school was still in the proposal and asked it be modified since the school has been removed.]

[COMMISSIONER NELSON]: The last sentence in number 5 — I believe it refers to when there was still the activity of a school. It needs to be modified.

[GOULD]: Agreed. We can remove that and leave it at "determine that the use is compatible."

[HAM confirmed these are findings for denial.]

Motion

A commissioner moved to deny the appeal in case BA 2026-001 / ZA 2026-004, and to approve the modified findings and conditions as read into the record. A second was made.

Pre-vote statement by Commissioner Withers

I am in favor of allowing this mosque to develop, but I am frustrated with the process, and the people in this room who will be impacted by this deserve an explanation. The concerns about traffic are not being addressed in this process, and part of that has to do with the way the rules are set up. Looking at A1 zoning — 4 out of 5 of the conditions are clearly met. A1 zoning does permit the church as a conditional use. It is not out of scope of the character of the community. There is a church right down the street. They have enough parking. There is not a way to address the traffic issues at this stage — it is basically “what it is, and good luck.” That really frustrates me, and I wanted to put that on the record before we vote.

Vote

- Ayes: Majority
- Nays: 1 (Commissioner Withers)

Motion passed: Appeal DENIED. Modified conditional use approval GRANTED.

Section 4: Key Citable Quotes by Topic

Traffic — Inadequate Analysis at Zoning Stage

“There is no project-specific traffic impact study in the zoning record. Public Works told the zoning administrator that the traffic review would be required at building permit, and the staff report says the traffic impact study will be required later... That is not proof. That is deferral.”

— Pat Hauser, Appellant, BA 2026-001 hearing

“Public Works’ teeth in the matter is at building permit. So the answer is: no, you have nothing on record.”

— Julie Luna, Traffic Operations Manager, Bernalillo County Public Works, BA 2026-001 hearing

“We are tasked with determining whether or not this can be developed in a way that doesn’t cause undue traffic, and then we’re told that we won’t get to find out whether or not this will cause undue traffic until after we approve it.”

— Commissioner Withers, BA 2026-001 hearing

“It seems paradoxical to me that we’re tasked with determining the appropriateness of the use and whether this project can be developed without causing undue traffic congestion and then hearing from people in the community that there already is undue traffic congestion.”

— Commissioner Withers, BA 2026-001 hearing

Traffic — Regional Congestion Acknowledged by County

“Alameda Boulevard absolutely does have a congestion issue. And it is a regional problem... Anyone who commutes from the west side to the east side experiences this issue.”

— Julie Luna, Traffic Operations Manager, Bernalillo County Public Works, BA 2026-001 hearing

“West of the river, for every 2 homes, there is 1 job. East of the river, for every 2 homes, there are 3 jobs.”

— Julie Luna, Traffic Operations Manager, Bernalillo County Public Works, BA 2026-001 hearing

Traffic — Murphy Study

“The Murphy Express traffic study was not placed into the record by zoning administration. It was provided by me, as part of our supplemental materials, because the county did not put a project-specific traffic study into the file before approving the permit.”

— Pat Hauser, Appellant, BA 2026-001 hearing

“We consider the studies valid for three years... It is helpful when there have been multiple studies along a corridor. But this project does need to have its very own traffic study for this location.”

— Julie Luna, Traffic Operations Manager, Bernalillo County Public Works, BA 2026-001 hearing

"I talked to Terry Brown, the traffic engineer that did the Murphy study. He said a 43,000-square-foot mosque is going to generate a minimum of 410 occurrences in the morning and 1,300 in the afternoon."

— Mr. Kazur (appellant supporter/licensed pilot), BA 2026-001 hearing

School Removal

"We started to look at the proposed classrooms and school use and felt like the magnitude of that rose beyond what would be an incidental use and would be kind of a conditional use on its own... that school use would need to be remanded back to the ZA for consideration as its own particular conditional use permit."

— Maggie Gould, Zoning Administrator, BA 2026-001 hearing

"There is no school, there is no preschool, there are no classes, there is no elementary school, there is no middle school, there is no high school. This is just for confirmation for everybody."

— Joseph Tahat, Applicant's Representative, BA 2026-001 hearing

Site Adequacy

"The applicant's own written statement on adequacy says '3.87 acres is ample space' and compares it to three football fields. That is not substantial evidence."

— Pat Hauser, Appellant, BA 2026-001 hearing

"The first floor footprint is going to be 43,000 square feet. And the second floor is going to be between 15,000 and 17,000 square feet."

— Joseph Tahat, Applicant's Representative, BA 2026-001 hearing

Building Permit vs. Zoning Stage Obligations

"Part of what happens with the conditional use approval is more about the use and less about the layout. And at building permit, things like traffic studies, drainage, all of those things occur as kind of a second part."

— Maggie Gould, Zoning Administrator, BA 2026-001 hearing

"The ordinance requires a real adequacy finding now, based on the whole record — not that Public Works can make this plan work later."

— Pat Hauser (citing High-Risk Shackle), Appellant, BA 2026-001 hearing

Rural Designation

"The site is within the rural area of the comprehensive plan."

— Finding of fact read into the record by staff, BA 2026-001 hearing

“The zoning administrator did not meaningfully apply the Albuquerque-Bernalillo County planning framework, did not grapple with the rural designation, and did not support the no adverse effect finding with substantial evidence.”

— Pat Hauser, Appellant, BA 2026-001 hearing

Amplified Sound / Conditions

“There was a condition — condition number 3 — that prohibited amplified sound, given the proximity to residential to the north.”

— Nicholas Ham, Planning and Development Services, BA 2026-001 hearing

Anti-Discrimination Statement on Record

“I am very disgusted by the insinuations that we should block this development based on the fact that people do not like the religion that is being practiced there. That will not factor into my thinking in any way.”

— Commissioner Withers, BA 2026-001 hearing

Section 5: Case Law Referenced on the Record

The following New Mexico case law was cited by Appellant Pat Hauser as controlling authority:

Case	Key Principle
Duke City Lumber	Applicant carries burden of proof; approval must rest on substantial evidence in the record — not assumptions or staff confidence that issues can be resolved later
Butterfield (cited as "Batter Shell")	Resident testimony about real traffic and neighborhood conditions is evidence that must be weighed, especially where the technical record is thin
High-Risk Shackle	Board must look at the whole record; staff practices cannot substitute for what the ordinance actually requires
Dolan	County cannot assume it can force one private applicant to pay for major off-site or regional fixes unless conditions meet the law's rough proportionality standard

Section 6: Hearing Gaps & Records Request

Note: This transcription was prepared from partial audio recordings captured during the hearing. The following portions are NOT included in this transcription:

- The full 3.5-hour public comment period
- Several additional short recording segments
- Any testimony or deliberation not captured in the above recordings

Records Request Recommended

To obtain the complete official hearing record for BA 2026-001 / ZA 2026-004, submit a public records request to:

Bernalillo County Planning & Development Services

Request the following:

1. Official audio/video recording of the full BA 2026-001 / ZA 2026-004 hearing
2. Full transcript (if prepared by county)
3. All written public comments submitted before and after both deadlines
4. All supplemental materials submitted by applicant (including updated site plan received day before hearing)
5. All supplemental materials submitted by appellant
6. Staff report and all findings/conditions documents (both approval and denial sets)
7. The Murphy Express traffic study as entered into the record

Under the New Mexico Inspection of Public Records Act (IPRA), NMSA 1978 § 14-2-1 et seq., the county must respond within 15 business days.

Document prepared: July 5, 2026

Hearing date: [To be confirmed from official record]

Transcription source: Partial audio captured by Victoria Chavez

NOTE: This is not an official transcript. It is prepared for advocacy and citation purposes. Confirm all quotes against the official recording before use in legal proceedings.